

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, AUGUST 11, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**BRIAN G. BONN; ET AL. vs. JOHN A. DIMICHELLE; ET AL.
Case No. CL24-07157**

Motion for Leave to File First Amended Cross-Complaint

TENTATIVE RULING

Defendants' motion for leave to file the proposed first amended cross-complaint is granted.

The proposed amendment is not futile. A property owner must act reasonably when removing limbs or roots from adjoining trees that encroach upon the neighboring property. (*Booska v. Patel* (1994) 24 Cal.App.4th 1786, 1791.) The property owner does not have an absolute privilege to cut the roots if it would unnecessarily kill or injure the encroaching tree. (*Russell v. Man* (2020) 58 Cal.App.5th 530, 537.)

Additionally, Plaintiffs have failed to demonstrate any prejudice. Plaintiffs have not served any written discovery, Plaintiffs have not taken any depositions of Defendants, and the action has not been set for trial. (Decl. of Lowell, ¶ 9.)
